



Slaughter of Poultry Act 1967

1967 CHAPTER 24

An Act to provide for the humane slaughter, for certain commercial purposes, of poultry. [10th May 1967]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Provisions as to mode of slaughter, for certain commercial purposes, of turkeys and domestic fowls.

1.—(1) Subject to the provisions of this section, no turkey kept in captivity or domestic fowl so kept shall be slaughtered, for purposes of preparation for sale for human consumption, unless it is slaughtered instantaneously by means of decapitation or dislocation of the neck or some other method approved by the Ministers, or it is, by stunning effected by means of an instrument of a kind approved by them and in proper repair, instantaneously rendered insensible to pain until death supervenes.

(2) The foregoing subsection shall not apply to the slaughter, without the infliction of unnecessary suffering, of a bird—

- (a) by the Jewish method for the food of Jews and by a Jew duly licensed for the purpose by the Rabbinical Commission referred to in Schedule 1 to the Slaughter of Animals Act 1958; or
- (b) by the Muslim method for the food of Muslims and by a Muslim.

(3) A person who slaughters a bird in contravention of subsection (1) of this section shall, unless he proves that by reason of an accident or other emergency the slaughter was necessary for preventing physical injury or suffering to any person or animal, be guilty of an offence and liable, on summary conviction, to a fine not exceeding £50 or to imprisonment for a term not exceeding three months, or to both.

1958 c. 8
(7 & 8 Eliz. 2).

(4) This section shall apply to Scotland as if in subsection (2)(a) for the words from "Rabbinical" to "1958" there were substituted the words "Chief Rabbi".

2. It shall be the duty of every local authority to maintain for the purposes of this section a register of premises situate within their area, and if, in premises so situate that are not registered in that register, a turkey kept in captivity or a domestic fowl so kept is slaughtered, for purposes mentioned in section 1(1) above, having been, by stunning effected as mentioned in section 1(1) above, instantaneously rendered insensible to pain until death supervened, the occupier of the premises shall be guilty of an offence, and liable, on summary conviction, to a fine not exceeding £20.

Slaughter, for certain commercial purposes, while insensible after stunning, to take place only in registered premises.

3.—(1) The Ministers may, after consultation with such persons or bodies as seem to them representative of the interests concerned, by statutory instrument (which shall be subject to annulment in pursuance of a resolution of either House of Parliament) make such regulations as appear to them to be expedient for securing humane conditions and practices in connection with the slaughter, for purposes mentioned in section 1(1) above, of turkeys kept in captivity and domestic fowls so kept; and such regulations may, in particular, prescribe conditions to be observed in connection with the confinement and treatment of such turkeys and domestic fowls while awaiting slaughter and in connection with the slaughter of such turkeys and domestic fowls.

Regulations for securing humane conditions of slaughter for certain commercial purposes, &c.

(2) Regulations under this section may prescribe penalties for offences against the regulations, not exceeding those specified in section 1(3) of this Act.

4.—(1) At any time at which the slaughter, for purposes mentioned in section 1(1) above, of turkeys kept in captivity or domestic fowls so kept is, or appears to be, in progress in any premises, at any time not later than forty-eight hours after a time at which the slaughter for such purposes of such turkeys or domestic fowls was, or appears to have been, in progress in any premises, and at any time at which it appears that turkeys or domestic fowls are on any premises for the purpose of their being slaughtered for such purposes, a person authorised in that behalf by the Minister of Agriculture, Fisheries and Food or the Secretary of State or by the local authority within whose area the premises are situate may enter the premises for the purpose of ascertaining whether there is, or has been, on those premises any contravention of, or failure to comply with, any provision of this Act or regulations thereunder.

Power of certain persons to enter premises where slaughter for certain commercial purposes takes place.

(2) A person who obstructs a person in the exercise of his powers under the foregoing subsection shall be guilty of an

offence and liable, on summary conviction, to a fine not exceeding £20.

Offences by corporations.

5. Where a body corporate is guilty of an offence under this Act and the offence is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, a director, manager, secretary or other similar officer of the body corporate or any person who was purporting to act in any such capacity, he, as well as the body corporate, shall be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

Power of local authorities to institute proceedings for offences.

6. A local authority in England or Wales shall have power to institute proceedings in respect of a contravention occurring within their area of a provision of this Act or of regulations thereunder.

Power to extend Act to birds other than turkeys and domestic fowls.

7.—(1) The Ministers may, after consultation with such persons or bodies as seem to them representative of the interests concerned, by order extend this Act (subject to such, if any, exceptions, adaptations and modifications as may be specified in the order) to the slaughter, for purposes mentioned in section 1(1) above, of birds of any kind kept in captivity, other than turkeys and domestic fowls.

(2) An order under this section may be varied or revoked by a subsequent order thereunder made by the Ministers.

(3) The powers conferred by this section shall be exercisable by statutory instrument, and no order shall be made under this section unless a draft thereof has been laid before Parliament and has been approved by resolution of each House of Parliament.

Interpretation.

8. In this Act—

“local authority” means, as respects England and Wales, the council of a county borough, a London borough or a county district or the Common Council of the City of London and, as respects Scotland, a county council or a town council ;

“the Ministers” means the Minister of Agriculture, Fisheries and Food and the Secretary of State acting jointly.

Short title, extent and commencement.

9.—(1) This Act may be cited as the Slaughter of Poultry Act 1967.

(2) This Act shall not extend to Northern Ireland.

(3) This Act shall come into force on such day as the Ministers may by order, made by statutory instrument, appoint, and different days may be appointed for the purposes of different provisions of this Act.